

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM05
HON. Judge Ebrahim Baytieh

Date: 07/01/2026

Court Room Rules and Notices

#	Case Name	Tentative
1	<u>Rouse – Probate</u> 30-2022-01258385	MOTION FOR FEES; MOTION TO STRIKE/TAX COSTS Petitioner Bryan Rouse’s Motion for Attorney Fees (ROA 450) is GRANTED in part as set forth below. Respondent Leonard Rouse’s Motion to Strike, or, in the alternative, to Tax Costs (ROA 444) is GRANTED. I. MOTION FOR FEES (ROA 450) Calculation of attorneys’ fees is committed to the discretion of the trial court. (<i>PLCM Group v. Drexler</i> (2000) 22 Cal.App.4th 1084, 1095–1096.) “[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. ‘California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys’ fee award.’ [Citation.] The reasonable hourly rate is that prevailing in the community for similar work. [Citations.] The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided.” (<i>Id.</i>, at p. 1095.) It is well-settled that the court is not bound by the evidence and argument provided by the party seeking the fees. Under California law, the “court has a duty, independent of any objection, to assure that the amount and mode of payment of attorney fees are fair and proper.” (<i>In re Consumer Privacy Cases</i> (2009) 175 Cal.App.4th 545, 555.) Furthermore, the “courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom, and this includes the determination of the hourly rate that will be used in the lodestar calculus. In making its calculation, the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.”

	<i>(569 East County Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426.)</i> Petitioner requests fees of \$241,942.50. Based on the foregoing principles as well as its own detailed knowledge of this case, and after carefully considering the papers submitted in support of and in opposition to the motion for fees, the court awards Petitioner fees in the amount of \$173,300.00. In arriving at this calculation, the court did not strike or reduce any specific entry because the amount of work appeared reasonable within the context of this case. However, the court found the hourly rates were not in line with the prevailing rates for similar work in the community. Accordingly, the court awarded fees for the recorded work at the following hourly rates, which it finds to be the prevailing rates for similar work relating to cases similarly situated as far as complexity, in this community: \$400 per hour for work performed by associates, \$500 per hour for work performed by Mr. Matthew Stidham, \$175 per hour for work performed by paralegals, \$125 per hour for work performed by law clerks, and \$50 per hour for work performed by administrative staff. With the adjustments in hourly rates, Petitioner’s motion is GRANTED and Petitioner is awarded fees in the amount of \$173,330.00. II. RESPONDENT’S MOTION TO STRIKE/TAX PETITIONERS’ COSTS (ROA 444) In California, “a prevailing party in a civil proceeding is entitled to the recovery of costs.” (<i>Sanders v. Lawson</i> (2008) 164 Cal.App.4th 434, 438.) Pursuant to Section 1033.5(a), certain types of costs are expressly allowed. Pursuant to Section 1033.5(b), certain types of costs are expressly disallowed. “Expenses which do not fit into either of these two categories . . . may be recovered only at the discretion of the court.” (<i>Science Applications Internation Corp. v. Superior Court</i> (1995) 39 Cal.App.4th 1095, 1101; Section 1033.5(c)(4).) Recoverable costs—whether expressly allowed or discretionary—must have been both “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” and “reasonable in amount” to be recovered. (Code of Civil Procedure section 1033.5(c)(2) & (3).) ¹ Respondent argues the memorandum of costs was untimely. The judgment in this matter was served by mail on the parties on January 30, 2026. Pursuant to Rules of Court, Rule 3.1700 (a)(1), Petitioner had to “serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment.” Because the judgment was served by mail, an additional five days is added to the allowed fifteen days (Code of Civ. Proc., § 1013(a)) for a total of twenty days. Accordingly, Petitioner had until February 19, 2026, to serve a memorandum of costs. On February 19, 2026, Petitioner filed a summary of costs (form MC-010). He did not file the accompanying worksheet (form MC-011). Rule 3.1700 mandates service and filing of a “memorandum of costs.” That phrase is not defined in Rule 3.1700 nor anywhere in the Rules of Court or the Code of Civil Procedure. The parties in this case disagree as to its meaning. Petitioner argues the summary of costs he filed was sufficient to satisfy the
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¹ All statutory references are to the Code of Civil Procedure unless otherwise specifically indicated.

		requirement that he serve and file a “memorandum of costs.” He argues he was not required to file the worksheet that sets forth the specific costs the party is seeking to recover (MC-011) because it is an optional form. Respondent argues the summary was not sufficient to be considered a memorandum of costs. Petitioner is correct that the missing worksheet is an optional form. The summary he filed (MC-010) is also an optional form. The two forms, entitled “Memorandum of Costs (Summary)” and “Memorandum of Costs (Worksheet)” were designed to be used together. Here, only one of the two companion forms was utilized. The court was unable to find any published decision addressing the specific issue of whether a general summary of costs satisfies the requirement of a “memorandum of costs.” The legislative history of Rule 3.1700 and Code of Civil Procedure sections 1032, 1033.5, and 1034 similarly did not specifically address or discuss what is required in a “memorandum of costs.” Section 1033.5(c)(2) and (3), however, provide guidance on this issue. Those subsections direct that allowable costs “shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” and “reasonable in amount.” Without the worksheet or any kind of breakdown of the categories of costs sought by Petitioner, there is nothing this court can use to determine if the costs were reasonably necessary to the conduct of the litigation or reasonable in amount. This interpretation is reinforced by cases discussing the parties’ burdens on the issue of costs. Which party bears the burden on the issue of costs depends on whether the costs are expressly allowed or discretionary. “If the items appearing in a cost bill appears to be proper <i>charges</i>, the burden is on the party seeking to tax costs to show that [they] were not reasonable or necessary. On the other hand, if the <i>items</i> are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.” (<i>Ladas v. California State Auto. Assn.</i> (1993) 19 Cal.App.4th 761, 774, emphasis added; see <i>Whatley-Miller v. Cooper</i> (2013) 212 Cal.App.4th 1103, 1115 [If the items appear to be proper charges, the verified memorandum is prima facie evidence that the costs, expenses and service therein listed were necessarily incurred by the [party claiming costs], and the burden of showing that an <i>item</i> is not properly chargeable or unreasonable is upon the [objecting party].], emphasis added and internal quotation marks omitted.) In this case, the summary of costs filed by Petitioner did not include any “charge” or “item.” It simply provided totals for general categories of costs. In the absence of any identification of the individual costs sought, there is no basis for the party opposing such a summary to challenge the costs. (<i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 132 [where the memorandum of costs fails to state “how the subpoenas were served, if cannot be determined from the face of the cost bill whether the items are proper” and, even though verified, such a memorandum is “insufficient”].) The court notes that even in opposition to the motion to tax, Petitioner offered no detail regarding any of the categories of costs he seeks to recover. Accordingly, the court finds that the summary of costs did not provide sufficient information either for Respondent to challenge individual costs, or for the court to determine if the costs were proper, reasonable, or necessary as required by Code of Civil Procedure section 1033.5(c)(2) & (3). Accordingly,
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